

CASE SUMMARY

State v. Munni Devi

Ct. Case No. 386/2020 | CNR DLSW01-003090-2020 | Court of the Additional Sessions Judge (Electricity), South-West District, Dwarka Courts, Delhi

COURT	Court of the Additional Sessions Judge (Electricity), South-West District, Dwarka Courts, Delhi
JUDGE	Ms. Harleen Singh, Addl. Sessions Judge (Electricity)
DATE OF JUDGMENT	date of judgment (date of inspection / offence: date of inspection)
PARTIES	State (BSES Rajdhani Power Ltd.) v. (1) Munni Devi (user/owner) and (2) Kapoor Singh (registered consumer)
STATUTES INVOKED	Section 135 (and third proviso to s. 135(1)), Electricity Act, 2003; Sections 101, 106 & 65B, Indian Evidence Act, 1872; Sections 251 & 313, Cr.P.C.
RESULT	Acquitted — complaint dismissed. No Board Resolution proved the CEO's authority to delegate the complaint, only one of four team members was examined, and computer-generated documents came without a Section 65B certificate. The accused stands acquitted of the charge under Sections 135, 150, 151 and 154 of the Electricity Act, 2003.

CHARGE BEFORE THE COURT

Whether the accused abstracted electricity at the inspected premises, so as to attract Sections 135/150/151/154 of the Electricity Act, 2003; and whether the complaint was competently authorised and the prosecution's evidence legally proved.

FACTS

BSES Rajdhani alleged a direct theft (assessed at about Rs. 2.45 lakh). The prosecution did not place on record any Board Resolution proving that the CEO was authorised to delegate the power to complain; only one of the four members of the inspecting team was examined; the computer-generated documents were filed without a Section 65B certificate; the videographer was not examined; and the witnesses gave inconsistent accounts of the seizure of the wire.

On a complaint under Sections 135/150/151/154, the accused pleaded not guilty. The defects in authorisation and proof emerged in cross-examination. Under Section 313 Cr.P.C. the accused denied the allegations.

REASONING OF THE COURT

HEADNOTE

A theft complaint by a licensee fails where the authority of the complaining officer is not proved (no Board Resolution empowering the CEO to delegate), the inspecting team is all but unexamined, the computer-generated records lack a Section 65B certificate and the videographer is not produced; the accumulation of authorisation and proof defects denies the charge a foundation.

The presumption arises only after the prosecution proves the foundational facts. The Court proceeded from first principles: the third proviso to Section 135(1) is a reverse-onus clause that operates only once the prosecution has proved, beyond reasonable doubt, both an unauthorised abstraction of electricity and the identity of the accused as its author or the consumer of the premises. Until that foundation is laid the ordinary burden rests on the prosecution, and where two views are reasonably possible the one favouring the accused must be preferred.

The competence of the complaint was not proved. No Board Resolution was placed on record to show that the CEO was authorised to delegate the power to lodge the complaint; the very authority behind the prosecution was therefore unestablished.

The inspection was barely proved. Only one of the four members of the inspecting team was examined, and the videographer — who alone could prove the recording — was not produced, so the inspection rested on a fraction of those who conducted it.

The electronic and computer records were uncertified. The computer-generated documents were filed without the Section 65B certificate the law requires, and the accounts of the seizure of the wire were inconsistent — the documentary and physical proof were both legally infirm.

The cumulative doubt entitled the accused to acquittal. With no Board Resolution proving the CEO’s authority to complain, only one of four team members examined, computer records without a Section 65B certificate and an unexamined videographer, the foundational facts were not established to the standard the law requires. The statutory presumption never arose, the benefit of the doubt went to the accused, and the charge under Sections 135, 150, 151 and 154 of the Electricity Act, 2003 was not brought home.

INTERPRETATION OF THE ELECTRICITY STATUTES

ELECTRICITY ACT, 2003

Section 135(1) — Theft of Electricity: the Foundational Facts

The Court read Section 135(1) as requiring the prosecution first to prove, beyond reasonable doubt, the foundational facts — an unauthorised or artificial abstraction of electricity *and* the identity of the accused as its author or as the consumer/user of the inspected premises. Only upon proof of those facts does the offence, or the abetment of it, arise; a bare allegation, or mere presence at or near the spot, is not enough. As the Act does not define “dishonestly,” Section 24 IPC is imported, but dishonest intention presupposes an abstraction first fixed on the accused.

Third Proviso to Section 135(1) — When the Presumption Does Not Arise

The reverse-onus presumption of dishonest use operates only after the prosecution has established the artificial means of abstraction and connected it to the accused. Where that foundation fails — the inspection is self-contradictory, the user’s identity is not fixed, material witnesses are withheld, the electronic record is not duly certified under Section 65B, or the officer’s authority to complain is not proved — the presumption never arises. The ordinary rule then governs: the prosecution must prove guilt beyond reasonable doubt, and where two views are reasonably possible the one favouring the accused is adopted.

HELD

The prosecution having failed to prove the foundational facts — no Board Resolution proving the CEO’s authority to complain, only one of four team members examined, computer records without a Section 65B certificate and an unexamined videographer — the charge under Sections 135, 150, 151 and 154 of the Electricity Act, 2003 was not established beyond reasonable doubt. **The accused is accordingly acquitted, and the complaint is dismissed.**

SIGNIFICANCE

An acquittal on authorisation and proof defects — the licensee’s own competence unproved. Four propositions stand out:

- **Authority to complain is a foundational fact.** Without proof that the complaining officer was empowered, the prosecution’s competence is in doubt from the outset.
- **Examining one of four is not enough.** A largely unexamined team and a missing videographer leave the inspection unproved.
- **Computer-generated records need Section 65B certification.** Uncertified electronic/computer documents are inadmissible.
- **Procedural defects can be cumulative and decisive.** Individually curable lapses, taken together, deny the charge a foundation.

CITATIONS

The decision turned wholly on the evidence; neither side pressed any case authority, and the Court decided the matter on the record before it.

This summary is a condensed digest prepared for quick reference. It is not a substitute for the full text of the judgment and should not be relied upon for legal advice without verification against the original.